1946

# Executive Order

## CHALLIS NATIONAL FOREST

### IDAHO

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Challis National Forest as modified by the Proclamation of May 19, 1913, be further modified by eliminating therefrom the following described lands, in the State of Idaho:

In T. 10 N., R. 13 E., that part of the SW ¼ of Sec. 3 lying west and north of Valley Creek; NW ¼, and that part of the S ½ of Sec. 4 lying north of Valley Creek; that part of Sec. 5 lying north of Valley Creek; those parts of Lots 1 and 2 of Sec. 6 lying north of Valley Creek;

Boise Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of existing withdrawals, shall be open to actual settlers only under the provisions of the homestead laws for a period of twenty-eight days from and including 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date of this order, and thereafter to entry and disposition under any and all of the public land laws applicable thereto: Provided, that the rights of the State under the provisions of the Act of March 3, 1893 (27 Stat., 592), shall not be abridged in so far as any of such lands are affected thereby. Unsurveyed lands are not subject to the provisions of said Act, but in the absence of a prior valid adverse right, the preference accorded the State thereby, where the township has been surveyed and the plat thereof filed while the lands were reserved for forestry purposes, will attach immediately upon the restoration of such lands to selection and entry under the general land laws of the United States as herein provided and continue for sixty days.

Persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights, as above defined, will be allowed to make entry in conformity with existing law and regulations.

**WOODROW WILSON**

THE WHITE HOUSE,
*21 May, 1914.*

[No. 1946.]